
MEMORANDUM

TO: Mayor Richard Kaysen, and City Council
FROM: Sara Vasquez, Purchasing Manager *SV*
DATE: August 19, 2015
SUBJECT: Consideration of Bid #S-4-16 for annual contracts for Snow Removal and Other Services.

Bids were requested for snow removal and other services (unforeseen emergency situations such as demolition and cleanup necessitated by tornado or flood) to be provided on an as-needed basis. The invitation to bid anticipated that all responsive bidders will be awarded contracts, with the work first being assigned to the bidder submitting the lowest combination of prices for any particular group of equipment needed for a specific situation; the, if additional services are required, other bidders will be called upon in order of lowest bid price combinations.

One bid was received: JTL Group Inc., d/b/a Knife River, Cheyenne, WY.

It is recommended that the contract be awarded to JTL Group Inc., d/b/a Knife River for these services. Copies of the equipment lists and bid prices are attached to the agreements.

Funding for emergency snow removal has been budgeted in the 2015-2018 1% sales tax.
(022-26-2616-42-21327)

Risk Review

By: BS
Date: 8-18-15

CONTRACT FOR SNOW REMOVAL
AND OTHER SERVICES
Bid #S-4-16

Approved as to
form only:

D. Whia

Date: 8/18/2015

CONTRACT NO. _____

THIS CONTRACT entered into this _____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, a municipal corporation, hereinafter referred to as the "City" and JTL Group, Inc. d/b/a Knife River, hereinafter referred to as the "Contractor".

WITNESSETH:

IN CONSIDERATION of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. Services to be performed: This Contract shall constitute the basic agreement between the parties for removal of snow from streets located within the City of Cheyenne and for furnishing labor and equipment for other services that may be needed from time to time in event of sudden or unexpected situations that require immediate action. The conditions set forth herein shall apply to all services performed by the Contractor on behalf of the City. The City shall notify Contractor verbally of services to be performed. Such notification shall include the location of such services and any other special circumstances relating to the services.

After completing the work described in any one notice, the Contractor shall so notify the City Director of Public Works or her designated representative at 637-6295.

If upon arrival at the work location, the Contractor finds that any or all of the work assigned has been or is being accomplished by others, the Contractor shall leave the location and immediately notify the City at the number shown above.

2. Time for Completion: The services described herein shall be completed by the Contractor within twenty-four (24) hours after receiving notification to proceed; or if the assignment is more extensive, within the time frame agreed to by the Contractor and the Director of Public Works or her representative at the time of assignment of work.
3. Changes in the Work: The City may, at any time during the term of a particular work assignment and without invalidating the Contract, make changes within the general scope of the particular work assignment and the contractor agrees to perform such changed work.
4. Materials, Equipment, and Labor: The Contractor undertakes and agrees to furnish and pay for all materials, supplies, labor, transportation, equipment, tools, services and supervision necessary to perform any services hereunder.

5. Term: This Contract shall commence on October 1, 2015 and terminate at midnight on June 30, 2015, with an option for a one year renewal subject to or until terminated as provided in Paragraph 8 below. Renewal shall become effective upon the execution of a renewal agreement by the contractor and the Mayor, subject to approval of the Governing Body, if required.
6. Warranty: The Contractor warrants that all services shall be performed using that degree of skill and care ordinarily exercised in and consistent with generally accepted practices for the nature of the services and shall conform to all requirements of this Contract and the notification. Any services which are determined by the City within a reasonable time after completion and acceptance of the services not to conform to the above standards or requirements shall, upon prompt notice to the Contractor, be immediately corrected by the Contractor at no additional cost to the City. If such nonconforming work is not satisfactorily corrected by the Contractor within a reasonable time, the City shall have the right to have such work corrected at the expense of the Contractor.
7. Delay: If either party is prevented in whole or in part from performing its obligations by unforeseeable causes beyond its reasonable control and without its fault or negligence, then the party so prevented shall be excused from whatever performance is affected by such cause.
8. Termination: The City shall have the right to terminate this Contract as to any work assignment for default should the City determine that the Contractor is failing to prosecute the work in a manner which will assure timely completion, or that the Contractor is not performing in accordance with the provisions of this Contract or the notification.

The City shall have the right to terminate this Contract for default, barring the Contractor from further participation in the Snow Removal and Other Services Program for the balance of the contract period should the City determine that the Contractor repeatedly fails to perform the work in accordance with the provisions of this Contract.

If the City terminates for default, the City shall not be liable for any further payments to the Contractor whatsoever, and the Contractor shall be liable for any costs to the City as a result of the termination. The City's rights herein shall be in addition to any other remedies it may have under the law.

9. Payments: The City agrees to pay and the Contractor agrees to accept as full payment for all work done and all materials furnished and for all costs and expenses incurred in the performance of the work under the notification in accordance with the low bid prices or the prices stated in the Bid Schedule form, attached hereto and by this reference made a part hereof.

The Contractor shall submit invoices on the City's form entitled "Snow Removal and Other Services Invoice Form" included in the bidding documents. Failure to use this form will result in delayed payments. Invoices must contain all requested information

and must be received by the City within five (5) working days after completion of the work assignment.

Within thirty (30) days after the final acceptance of the work, the City Director of Public Works or her designated representative, will certify the total work done and the amount due and payment will be issued. Payment shall be made by the City only upon completion of the work by the Contractor in a satisfactory manner and upon the Contractor certifying that he has paid for all wages, taxes, supplies, materials, and other costs incurred in connection with the performance of such services.

10. Independent Contractor: It is agreed that in the performance of any work performed hereunder be obtained in the particular work, the Contractor is an independent contractor responsible to the City only as to the results to assignment and to the extent that the work shall be done in accordance with the terms and conditions of the bidding and contract documents furnished by the City.
11. Laws and Regulations: The Contractor agrees to comply fully with all applicable state and federal laws and regulations and municipal ordinances affecting the work. The Contractor further agrees to comply fully with the Occupational Safety and Health Act, all regulations issued thereunder, and all state laws and regulations enacted and adopted pursuant thereto.
12. The Contractor also agrees to require and ensure that any persons operating motorized equipment possess a valid driver's license for the types of vehicles being operated.
13. The Contractor agrees to pay all state and federal taxes, and unemployment and workers compensations insurance, and other assessments or contributions due and payable to the State of Wyoming and/or the United States in connection with the work to be performed under this Contract and the Contractor shall hold the city harmless from any liability on account of any such taxes or assessments.
14. Administration of Contract: The City Director of Public Works or her duly appointed representative is responsible for the administration of this Contract on behalf of the City, including the authorization of deviation from specifications, details and performance schedules and Contract interpretations.
15. No Conflict With Third Parties: The Contractor agrees that no conflicts between the Contractor or its employees and any third party who owns or exercises control over the work site or adjacent property shall occur.
16. No Assignment: It is expressly agreed that the Contractor shall not assign this Contract in whole or in part without the prior written consent of the City.
17. Entire Contract: This Contract, along with the other documents referenced herein and listed below, forms the entire understanding of the parties, and there are no other terms, conditions or understanding, oral or written, concerning this matter. If any part of these

Contract documents is found to be in violation of any law, it shall not affect the remainder of the Contract.

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| a. Invitation For Bids | f. Notice of Award |
| b. Instructions To Bidders | g. Project Notifications |
| c. Signed and Completed Bid Proposal | h. General Provisions |
| d. Non-Collusion Affidavit | i. Insurance Requirements |
| e. Addenda, if any | |

IN WITNESS WHEREOF, the parties hereto have executed this Contract the day and year first written above.

ATTEST:

CITY OF CHEYENNE, WYOMING

Carol Intlekofer, City Clerk

Richard L. Kaysen, Mayor

JTL Group, Inc. d/b/a Knife River
Contractor

By _____

Title

PO Box 20150
Cheyenne, WY 82003

Notary or Corporation Secretary:

SUBSCRIBED AND SWORN TO BEFORE ME

this ____ day of _____, ____.

by _____

My Commission expires: _____

BID SCHEDULE

Equipment	Year	Make	Model	Cu. Yds Box/Bucket	HP	Blade Width	\$/HR
Tractor/Trailer Trucks	1996	KW	T800	16 CY	425	N/A	121.00
	1999	KW	T800	16 CY	425	N/A	121.00
	1999	KW	T800	16 CY	425	N/A	121.00
	1999	KW	T800	16 CY	425	N/A	121.00
Tandem Dump Trucks	1999	KW	T800	10 CY	330	N/A	110.00
	1999	KW	T800	10 CY	330	N/A	110.00
	1999	KW	T800	10 CY	330	N/A	110.00
	1999	KW	T800	10 CY	330	N/A	110.00
	2010	KW	T800	15 CY	425	N/A	121.00
	2010	KW	T800	15 CY	425	N/A	121.00
Single Axle Dump Trucks							
Wheel Loaders	1988	CAT	950E	4-5 CY	160	N/A	130.00
	1994	CAT	950F	4-5 CY	170	N/A	130.00
	2001	CAT	950G	4-5 CY	183	N/A	130.00
	2000	CAT	950G	4-5 CY	183	N/A	130.00
Motor Graders Articulating	1994	CAT	140G	N/A	150	14'	150.00
	2000	CAT	140H	N/A	215	14'	160.00
	2005	CAT	140H	N/A	165	14'	150.00
	1993	CAT	140G	N/A	150	14'	150.00

BID SCHEDULE CONTINUED

Equipment	Year	Make	Model	Cu. Yds Box/Bucket	HP	Blade Width	\$/HR
Motor Graders Non-Articulating							
Machine Driven Snow Blowers							
Other Equip.	2008	CAT	272C Skidsteer	2 CY	40	N/A	95.00
	2008	CAT	262C Skidsteer	2 CY	40	N/A	95.00
	2010	CAT	430E Loader	3 CY	56	N/A	103.00

Firm Name JTL Group, Inc. dba Knife River